

In subsection (2) for the word "lunatics" there shall be substituted the words "persons of unsound mind."

2ND SCH.
—cont.

In subsection (3) the word "and" in the last place but one where that word occurs shall be omitted and at the end of the subsection there shall be added the words "and the expressions 'person of unsound mind' and 'mental hospital' mean in the case of Scotland or Northern Ireland a lunatic and an asylum respectively."

In subsection (4) for the words "a lunatic" there shall be substituted in the first place where those words occur, the words "a person of unsound mind," and, in the second and third places where those words occur, the words "such a person"; and for the words "such lunatic" and for the words "the lunatic" there shall be substituted the words "such person" and the words "the person" respectively.

AMENDMENT OF ARMY ACT, s. 130.

In subsection (5) for the words "an asylum" there shall be substituted the words "a mental hospital."

CHAPTER 15.

An Act to provide for the reception and detention of certain persons of unsound mind in the Royal Naval Hospital at Great Yarmouth and for the treatment therein of certain voluntary patients; to prohibit the taking of legal proceedings in respect of the reception and detention of any person in the said hospital before the commencement of this Act; and for purposes connected with the matters aforesaid.

[29th April 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, in any case where—

(a) it is made to appear to the Admiralty by the separate certificates of two registered medical

Detention
of certain
persons of
unsound
mind in the

Royal
Naval
Hospital
at Great
Yarmouth.

practitioners that any such person as is mentioned in the next succeeding subsection is of unsound mind and a proper person to be taken charge of and detained as a patient under care and treatment; or

- (b) the Admiralty are satisfied as regards any person who is detained as a patient in any place under the provisions of the Lunacy and Mental Treatment Acts, 1890 to 1930, otherwise than as a voluntary patient or temporary patient within the meaning of the Mental Treatment Act, 1930, that either—

20 & 21
Geo. 5. c. 23.

(i) he is such a person as is mentioned in the next succeeding subsection; or

(ii) the cost of his maintenance is defrayed wholly or in part by the Minister of Pensions out of moneys provided by Parliament,

the Admiralty may, if they think fit, order that he be removed to and detained as a patient at the Royal Naval Hospital at Great Yarmouth (in this Act referred to as “Yarmouth Hospital”).

(2) The persons referred to in the last preceding subsection are as follows, that is to say—

- (a) commissioned officers, subordinate officers and warrant officers in the Royal Navy or the Royal Marines, whether on the active list or not;
- (b) persons serving in the Royal Navy or the Royal Marines, who would, if they were discharged, be eligible to be awarded a pension for life;
- (c) persons serving in the Royal Navy, the Royal Marines, the Royal Fleet Reserve, the Royal Naval Reserve or the Royal Naval Volunteer Reserve, who are, in the opinion of the Admiralty, suffering from unsoundness of mind attributable to their service;
- (d) persons who, having served in any of the forces mentioned in the last preceding paragraph, have been awarded a pension for life and are, in the opinion of the Admiralty, suffering from unsoundness of mind attributable to their service.

2.—(1) Except in the case of a person who is serving His Majesty, or of a person the cost of whose maintenance is defrayed wholly or in part by the Minister of Pensions out of moneys provided by Parliament, no order shall be made under the last preceding section unless it be made with the consent of the wife of the person concerned, or, if he has no wife, or if his wife is of unsound mind or is separated from him under the order of a court of competent jurisdiction, or cannot be found, with the consent of such one of his relations, or, if no adult near relation of sound mind can be found, with the consent of such one of his friends, as the Admiralty think best qualified to give a decision in the matter. Provisions
as to deten-
tion orders.

(2) No order shall be made under the last preceding section with respect to any person who is detained as a patient in any place under the provisions of the Lunacy and Mental Treatment Acts, 1890 to 1930, unless it be made with the consent of the Board of Control.

(3) If in any case where an order has been made under the last preceding section the wife of the patient, or, if he has no wife, or if his wife is of unsound mind or is separated from him under the order of a court of competent jurisdiction, or cannot be found, such one of his relations, or, if no adult near relation of sound mind can be found, such one of his friends, as the Admiralty think best qualified to give a decision in the matter, requests at any time that he be no longer detained at Yarmouth Hospital, the Admiralty shall, unless they are satisfied by a report from the officer in charge of the Hospital that that course cannot in the interests of the patient properly be taken, order him to be discharged.

(4) An order under the last preceding section—

(i) may be made in duplicate or triplicate or in so many original copies as is necessary or convenient, and

(ii) shall be sufficient to authorize any officer of His Majesty's forces or any person authorized thereto by any such officer to take the person therein mentioned and deliver him to the officer in charge of Yarmouth Hospital, and to authorize the last-mentioned officer and all persons acting under his orders to receive and detain the said person in Yarmouth Hospital until the Admiralty order him to be discharged.

(5) Where the person to whom an order made under the last preceding section relates is detained as a patient in any place under the provisions of the Lunacy and Mental Treatment Acts, 1890 to 1930—

- (i) the order shall not become operative until the patient is discharged from that place in accordance with the provisions of the said Acts; and
- (ii) the manager of the institution, or the medical officer in charge of the hospital or the master of the workhouse from which, or the person from whose care, the patient is so discharged, shall, without any charge, deliver copies of the reception or detention order under which the patient has been detained and of the documents accompanying that order and of the order for his discharge to the person receiving the patient, and that person shall deliver those copies to the officer in charge of Yarmouth Hospital.

(6) Every person of unsound mind who is at the commencement of this Act detained at Yarmouth Hospital shall be deemed to have been detained there in pursuance of an order made under the last preceding section.

Reports
as to the
condition
of patients
and
provisions
as to their
discharge.

3.—(1) It shall be the duty of the officer in charge of Yarmouth Hospital—

- (i) to report forthwith to the Admiralty the recovery of any person who is detained at the Hospital under the foregoing provisions of this Act and who is, in the opinion of the officer, no longer of unsound mind, and
- (ii) at the times hereinafter specified to make to the Admiralty with respect to each person who is so detained periodical reports of the patient's mental and bodily condition and to certify in each such report whether or not, in the opinion of the officer, the patient is still of unsound mind and a proper person to be detained under care and treatment,

and the Admiralty shall forthwith take every such report into consideration.

(2) The Admiralty may at any time order that any person who is detained at Yarmouth Hospital under the foregoing provisions of this Act shall be discharged from

the Hospital, and they shall forthwith order the discharge therefrom of any such person whose recovery is reported to them in accordance with the provisions of the preceding subsection.

(3) The periodical reports referred to in subsection (1) of this section shall be made—

- (i) within the month immediately preceding the expiration of each of the following periods, that is to say, one year, two years, four years and seven years, reckoned in each case from the appropriate day; and
- (ii) thereafter within the month immediately preceding the expiration of every period of five years subsequent to the expiration of the said period of seven years.

In this subsection the expression “the appropriate day” means—

- (i) in relation to a person who was detained in the Hospital at the commencement of this Act, the date at which he was received into the Hospital;
- (ii) in relation to a person who was received into the Hospital after the commencement of this Act and who was immediately before being so received detained in any place as a patient under the provisions of the Lunacy and Mental Treatment Acts, 1890 to 1930, the date of the order under which he was so detained;
- (iii) in any other case, the date of the order of the Admiralty under which he was received into Yarmouth Hospital.

(4) Section three of the Naval Enlistment Act, 1884 (which as amended by subsequent enactments empowers the Admiralty to send discharged seamen of unsound mind to certain institutions), shall apply as well to persons who, having been detained at Yarmouth Hospital in pursuance of an order made under the foregoing provisions of this Act, are discharged therefrom (including persons discharged therefrom at the request of their wives, relatives or friends) as to persons discharged from the naval service of His Majesty. 47 & 48 Vict
c. 46.

Absence
on leave,
escape and
recapture.

4.—(1) The officer in charge of Yarmouth Hospital may grant permission to any person detained thereat to be absent therefrom for such period as he thinks fit, but he may at any time require a person to whom such permission has been granted to return forthwith to the Hospital.

(2) If any person detained at Yarmouth Hospital escapes or, having been given permission to be absent from the Hospital, fails to return at the expiration of the period for which the permission was given or when required so to do by the officer in charge of the Hospital, he may at any time within fourteen days after his escape or, as the case may be, the expiration of the period for which the permission was given or the date on which he has been required to return, and without any fresh certificate or order, be retaken by any officer of the Hospital or any person acting with his written authority.

Voluntary
patients.

5.—(1) The Admiralty may, on such terms as to payment and otherwise as they may think fit, receive into Yarmouth Hospital as a voluntary patient any such person as is mentioned in subsection (2) of section one of this Act, who is desirous of voluntarily submitting himself to treatment for mental illness and who makes a written application for the purpose to the Admiralty.

(2) A person so admitted shall be at liberty to leave Yarmouth Hospital on giving to the officer in charge of the hospital seventy-two hours notice in writing of his intention so to do.

(3) If any person so admitted becomes at any time incapable of expressing himself as willing or unwilling to continue to receive treatment, he shall not thereafter be retained as a voluntary patient for a longer period than twenty-eight days, and shall, if he has not been previously discharged, be discharged on the expiration of twenty-eight days from the date on which he became incapable of so expressing himself, unless in the meantime he has again become capable of so expressing himself, or steps have been taken to deal with him under the provisions of section one of this Act.

Deductions
from pay or
pension in
certain
cases.

6. There may be made from any pay or pension payable to any person detained in Yarmouth Hospital in pursuance of the provisions of section one of this Act, not being a person the cost of whose maintenance is

defrayed in whole or in part by the Minister of Pensions out of moneys provided by Parliament, such deductions in respect of the cost of his maintenance as the Admiralty may determine, and, subject to any deduction so made, that pay or pension, or such part thereof as the Admiralty think fit, may be paid or applied in their discretion to or for the benefit of his wife, children or other dependents.

7. Any expenses incurred by the Admiralty under this Act in connection with the maintenance of Yarmouth Hospital and the maintenance and treatment of patients therein shall, so far as they are not met by deductions from pay or pensions, or by payments made by or on behalf of patients, be defrayed out of moneys provided by Parliament. Expenses of Admiralty.

8.—(1) Section three hundred and fifteen of the Lunacy Act, 1890 (which forbids the reception and detention of persons of unsound mind otherwise than in accordance with the provisions of that Act) shall not apply and shall be deemed never to have applied so as to forbid the reception and detention of persons of unsound mind in Yarmouth Hospital. Application of s. 315 of the Lunacy Act, 1890; indemnity in respect of past actions and protection of persons putting this Act in force.

(2) No proceedings, civil or criminal, shall be brought against any person in respect of the reception or detention of any person in Yarmouth Hospital before the commencement of this Act.

(3) Where a person has made, signed or carried out, or done any act with a view to the making, signing or carrying out of, any order purporting to be an order made under this Act or has made or signed any report or certificate purporting to be a report or certificate under this Act, or has done anything in pursuance of this Act, he shall not be liable to any civil or criminal proceedings, whether on the ground of want of jurisdiction or on any other ground, unless he has acted in bad faith or without reasonable care. 53 & 54 Vict. c. 5.

(4) No proceedings, civil or criminal, shall be brought against any person in any court in respect of any such matter as is mentioned in the last preceding subsection, without the leave of the High Court, and leave shall not be given unless the court is satisfied that there is substantial ground for the contention that the person, against whom it is sought to bring the proceedings, has acted in bad faith or without reasonable care.

(5) Notice of any application under the last preceding subsection shall be given to the person against whom it is sought to bring the proceedings, and that person shall be entitled to be heard against the application.

56 & 57 Vict.
c. 61. (6) Where on any such application as aforesaid leave is given to bring any proceedings, and the proceedings are commenced within four weeks after the date on which leave was so given, the proceedings shall for the purposes of the Public Authorities Protection Act, 1893, be deemed to have been commenced on the date on which notice of the application was given to the person against whom the proceedings are to be brought.

Misstate-
ments in
certificates,
&c.

9.—(1) Any person who makes a wilful misstatement of any material fact in any medical or other certificate or in any statement of bodily or mental condition under this Act shall be guilty of a misdemeanour.

(2) A prosecution for an offence under this section shall not be instituted except by the direction of the Attorney-General or the Director of Public Prosecutions.

Application
to Scotland
and
Northern
Ireland.

10.—(1) This Act shall apply to Scotland subject to the following modifications—

(a) for any reference to the Lunacy and Mental Treatment Acts, 1890 to 1930, there shall be substituted a reference to the Lunacy (Scotland) Acts, 1857 to 1919, and for any reference to the Board of Control there shall be substituted a reference to the General Board of Control for Scotland;

(b) for any reference to a voluntary or temporary patient within the meaning of the Mental Treatment Act, 1930, there shall be substituted a reference to a person received into an asylum as a voluntary boarder or temporarily, under section fifteen of the Lunacy (Scotland) Act, 1866, as amended by section fifty-nine of the Mental Deficiency and Lunacy (Scotland) Act, 1913, or under the proviso to section thirteen of the said Act of 1866;

29 & 30 Vict.
c. 51.

3 & 4 Geo. 5.
c. 38.

- (c) Subsection (4) of section eight of this Act shall have effect as if any reference to criminal proceedings were omitted therefrom and as if a reference to the Court of Session were substituted for the reference to the High Court;
 - (d) Subsection (2) of section nine of this Act shall not apply.
- (2) This Act shall apply to Northern Ireland subject to the following modifications—
- (a) for any reference to the Board of Control, there shall be substituted—
 - (i) in relation to a person detained in pursuance of a judicial order in lunacy, a reference to a judge having power to vary that order;
 - (ii) in relation to any other person, a reference to the Ministry of Home Affairs for Northern Ireland;
 - (b) for any reference to the Lunacy and Mental Treatment Acts, 1890 to 1930, there shall be substituted a reference to the enactments for the time being in force in Northern Ireland with respect to persons of unsound mind, not being criminal lunatics;
 - (c) for any reference to a voluntary patient or temporary patient within the meaning of the Mental Treatment Act, 1930, there shall be substituted a reference to a person detained as a voluntary or temporary patient within the meaning of any such enactment as aforesaid;
 - (d) for any reference to the Attorney-General or to the Director of Public Prosecutions there shall be substituted a reference to the Attorney-General for Northern Ireland;
 - (e) in paragraph (i) of subsection (5) of section two, for the words “in accordance with the provisions of the said Acts” there shall be substituted the words “in accordance with the consent given under subsection (2) of this section,” and in paragraph (ii) of the said subsection (5), the words “and of the order for his discharge” shall be omitted.

11. This Act may be cited as the Yarmouth Naval Hospital Act, 1931.
